

Master Service Agreement -- Cloudy SaaS Inc

This Master Service Agreement ("Agreement") governs the ongoing relationship between Cloudy SaaS Inc ("Vendor") and Customer, and is incorporated by reference into every Order Form executed under it.

1. **Term and Termination.** This Agreement renews annually unless either party gives 90 days' written notice of non-renewal. Either party may terminate for the other's uncured material breach.
2. **Data Breach Notification.** Vendor will notify Customer within 30 of a confirmed security incident affecting Customer data.
3. **Limitation of Liability.** Vendor's aggregate liability under this Agreement is capped at 12 months of fees paid by Customer in the twelve months preceding the claim.
4. **Subprocessor Flow-Down.** Vendor discloses AWS us-east-1, providing cloud hosting infrastructure, located in the USA as a subprocessor and will flow down equivalent data-protection obligations to any subprocessor it engages.
5. **Service Levels.** Service availability and support response commitments are set out in the accompanying Service Level Agreement, which is incorporated by reference.